

PARLIMENT

CEYLUN

3rd Session 1967-6



Colombo District (Low-lying Areas) Reclamation and Development Board Act, Na. 15 of 1968

Date *of* Anent May 17, 15'6S

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*Colombo District (Low-lying Areas)
Reclamation and Development Board
Act, No. 15 of 1968*

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4r: AN ACT TO PROVIDE FOR THE ESTABLISHMENT OF A BOARD TO BE KNOWN AS MR. COLOMBO DISTRICT (LOW LYING AREAS) RECLAMATION AND DEVELOPMENT BOARD FOR THE RECLAMATION AND DEVELOPMENT OF SUMMERS AND MAY AP. DECLARED FOR THE PURPOSE OF THE MINISTER THAT SUCH AREAS MAY BE REFORMED SUITABLE FOR WILDLIFE PROTECTION, AND FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THEREWITH.

Date of Assent.: May 17, 1968

BE it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Senate and the House of Representatives of Ceylon in this —* present Parliament assembled, and by the authority of the same, as follows:—

This Act may be cited as the Colombo District (Low-lying Areas) Reclamation and Development Board Act, No. 15 of 1968, and shall come into operation on such date as the Minister may, by Order published in the *Gazette*, appoint.

Short (Title and full name of the Act).

PART I.

POWER OF MINISTER TO DECLARE RECLAMATION AND DEVELOPMENT AREAS.

2. (1) Where the Minister is satisfied that any area of land situated within the jurisdiction of any local authority, specified in the First Schedule to this Act is a low-lying, marshy, waste or swampy area, he shall after consultation with the Minister of the Government and the local authority or authorities within which such area of land is situated by Order published in the *Gazette*, declare such area to be a Reclamation and Development Area for the purposes of this Act.

Declaration of Reclamation and Development Area by the Minister of the Government and the local authority or authorities within which such area of land is situated.

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(2) An Order declaring a Reclamation and Development Area; under sub-section (1) shall define the area by setting out the metes and bounds of the land or lands comprised in the Area

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Act, No. 16 of 1968

to the contrary in that Act, be deemed to be the market value which that land would have had at the date of commencement of this Act if it then was in the same condition as it is at the time of acquisition.

17/5/68

PART II

ESTABLISHMENT OF THE COLOMBO DISTRICT (LOW-LYING AREAS) RECLAMATION AND DEVELOPMENT BOARD,

(1) A Board to be called the Colombo District (Low-lying Areas) Reclamation and Development Board is hereby established.

Establishment
of the Colombo
District
(Low-lying
Areas)
Reclamation
and Develop-
ment Board.

(2) The Board shall be a body corporate having perpetual succession and a common seal and may sue and be sued in the name assigned to it by sub-section 1).

0. (1) The Board shall consist of the following—

Notwithstanding Or
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- (a) three persons, namely,
 - (i) the Director of Irrigation,
 - (ii) the Director of Town and Country Planning, and
 - (iii) the Commissioner of National Housing; and
- (b) four other members appointed by the Government of which at least one shall be a qualified civil Engineer,

(2) A person shall be disqualified for appointment by the Minister as a member of the Board or for continuing as a member so appointed—

- (i) if he is a Senator or Member of Parliament, or
 - (ii) if he, directly or indirectly, has any interest subsisting contract with, or in any work being done for, the Board, except as a shareholder (other than a director) in an incorporated company, or
 - (iii) if he has any such financial or other interest as is likely to affect prejudicially the discharge by him of his duties as a member of the Board.
- (3) If a member of the Board other than an ex-officio member is continuously unable to function as such member, the Minister may appoint any person to act as a member of the Board.

4 Colombo District (Low-lying Areas)
Reclamation and Development Board
Act, No. 15 of 1968

(4) Every member of the Board other than an *ex officio* member shall unless he vacates the office of member of the Board earlier, hold such office for a period of three years commencing on the date of his appointment:

Provided that a person who is appointed as a member of the Board in place of a member who has vacated office before the end of his term of office shall,

unless the member so appointed vacates the office of member of the Board earlier, hold such office during the unexpired part of such term.

(5) A member of the Board other than an *ex officio* member may resign the office of such member by letter addressed to the Minister,

(6) The Minister may, without assigning any reason, remove from office a member of the Board other than an *ex officio* member.

(7) A member of the Board other than an *ex officio* member shall be deemed to have vacated office—

(a) on sending his resignation in writing to the Minister; or

(b) on his removal from office by the Minister; or

(c) on the expiry of his term of office.

(8) All or any of the members of the Board may be paid such remuneration as may be determined by the Minister with the concurrence of the Minister of Finance.

(9) Any resolution or proceeding of the Board shall be invalid by reason only of the existence of any vacancy amongst its members or any defect in the appointment thereof.

Chairman of
Lh Baba.

7. (1) The Minister shall appoint as the Chairman of the Board a person who is not a member of the Board other than an *ex officio* member.

(2) If the Chairman of the Board is unable to function as such Chairman, the Minister may appoint any member of the Board other than an *ex officio* member, to act as the Chairman of the Board.

(3) The Chairman, or the Board shall, unless he vacates the office of Chairman earlier, hold such office during the term for which he is a member of the Board: